



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 35260940

Date: JAN. 14, 2025

Appeal of Vermont Service Center Decision

Form I-360, Petition for Amerasian, Widow(er), or Special Immigrant (Abused Spouse of U.S. Citizen or Lawful Permanent Resident)

The Petitioner seeks immigrant classification as an abused spouse of a U.S. citizen. *See* Immigration and Nationality Act (the Act) section 204(a)(1)(A)(iii), 8 U.S.C. § 1154(a)(1)(A)(iii). Under the Violence Against Women Act (VAWA), an abused spouse may self-petition as an immediate relative rather than remain with or rely upon an abuser to secure immigration benefits. The Director of the Vermont Service Center denied the petition, concluding that the record did not establish that the Petitioner had a qualifying relationship with his U.S. citizen spouse and was eligible for immigrant classification based on such a relationship. The Petitioner filed a motion to reopen and reconsider the matter, and the Director subsequently dismissed the motion, again concluding that the Petitioner did not establish that he had a qualifying relationship with his U.S. citizen spouse and was eligible for immigrant classification based on such a qualifying relationship. The matter is now before us on appeal. 8 C.F.R. § 103.3.

The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). We review the questions in this matter de novo. *Matter of Christo's, Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will dismiss the appeal.

I. LAW

A petitioner who is the spouse or former spouse of a U.S. citizen may self-petition for immigrant classification if the petitioner demonstrates, in part, that they entered into the marriage with the U.S. citizen spouse in good faith and they were battered or subjected to extreme cruelty perpetrated by the petitioner's spouse. Section 204(a)(1)(A)(iii) of the Act; 8 C.F.R. § 204.2(c)(1)(i). Among other things, the petitioner must establish that they are eligible to be classified as an immediate relative under section 201(b)(2)(A)(i) of the Act. Section 204(a)(1)(A)(iii)(II)(cc) of the Act. In order to establish a qualifying relationship with the abusive U.S. citizen spouse, the petitioner must be legally married to the abusive spouse and submit a marriage certificate and proof of the termination of all prior marriages for the petitioner and the abuser. 8 C.F.R. § 204.2(c)(1)(i), (2)(ii). Petitioners are "encouraged to submit primary evidence whenever possible," but may submit any relevant, credible evidence in order to establish eligibility. 8 C.F.R. § 204.2(c)(2)(i). U.S. Citizenship and Immigration

Services (USCIS) determines, in our sole discretion, what evidence is credible and the weight to give such evidence. Section 204(a)(1)(J) of the Act; 8 C.F.R. § 204.2(c)(2)(i).

II. ANALYSIS

The Petitioner, a native and citizen of Nigeria, married his former U.S. citizen spouse, K-O-,¹ in Illinois in 2017 and filed his VAWA petition in January 2022 based on a claim of abuse by K-O-. The Director denied the VAWA petition, concluding that the Petitioner did not show that he was legally eligible to marry K-O- in 2017 because he did not demonstrate that his prior marriage in Nigeria had been legally terminated in 2016 and, as a consequence, had not established a qualifying relationship as K-O-'s spouse and corresponding eligibility to be classified as an immediate relative under section 201(b)(2)(A)(i) of the Act.

The Petitioner claimed on his VAWA petition that he had been married twice and provided the following documents that he claimed show that his prior marriage to a Nigerian named F-O-A- had been legally terminated on [] 2016.

- (1) A Decree Nisi of Dissolution of Marriage (Decree Nisi) between himself and F-O-A-. The Decree Nisi lists Suit No. []/2015, was purportedly issued by the High Court of Lagos State, [] in Nigeria and was signed by the Assistant Chief Registrar [] on [], 2015. This Decree Nisi states that the Petitioner's divorce from F-O-A- would become absolute three months after the date of the Decree Nisi. The Decree Nisi states that the underlying marriage was celebrated on [] 1991, but had broken down due to F-O-A-'s desertion of the Petitioner, among other things.
- (2) A Certificate of Decree Absolute (Decree Absolute) dated [] 2016. The Decree Absolute lists Suit No. []/2015, was purportedly issued by the High Court of Lagos State, [] and signed by the Assistant Chief Registrar [] [] and states that the [] 2015 Decree Nisi dissolving the marriage between the Petitioner and F-O-A- became absolute on [] 2016. The Decree Absolute states that the underlying marriage was celebrated on [], 2006.

USCIS records show that the Petitioner submitted a nonimmigrant visa application to the U.S. Department of State (State Department) on January 29, 2016, on which he claimed that he was still married to and living with F-O-A-.

The Director's denied the VAWA petition, noting that the Decree Nisi and Decree Absolute were inconsistent in that the Decree Absolute should have been issued in [] 2016 (three months after the date of the Decree Nisi) rather than [] 2016, according to the language in the Decree Nisi. Additionally, the Decree Nisi stated that the Petitioner had married F-O-A- in [] 1991 whereas the Decree Absolute stated that they married in [] 2006. The Director also stated that the Petitioner's Decree Nisi showing that the marriage was provisionally terminated as of [] 2015 based on F-O-A- having deserted the Petitioner was inconsistent with a subsequently January 2016

¹ Names withheld to protect the individuals' identities

visa application on which the Petitioner claimed to still be married and residing with F-O-A-. Finally, the Director questioned the validity of the divorce documents under Nigeria's Matrimonial Causes Act.²

On appeal, the Petitioner asserts that the Divorce Nisi and Divorce Absolute that he initially had provided were not correct but that the discrepancies were minor and do not hold significant importance. He also includes the following new documents:

- (3) A different [] 2015 Decree Nisi between himself and F-O-A-, stating that the Petitioner's divorce from F-O-A- would become absolute three months after the date of the Decree Nisi. This Decree Nisi lists a different Suit No. [] 2014.
- (4) A different Decree Absolute dated July 24, 2024. This Decree Absolute lists Suit No. [] 2014, and states that the [] 2015 Decree Nisi dissolving the marriage between the Petitioner and F-O-A- became absolute on [] 2016.
- (5) A July 24, 2024 letter from the High Court of Lagos State, [] signed by the Acting Chief Registrar, [] who stated: that a search resulted in a record of dissolution of marriage relating to [] 2014 (for the Petitioner's prior marriage to F-O-A-); that the divorce case was filed on [] 2014, adjudicated on [] 2015, and made absolute on [] 2016; and that erroneous information on the previously submitted decrees for Suit No. [] 2015 (i.e., the above divorce documents described in paragraph numbers 1 and 2 above) was due to "inadvertent errors" by another officer of the court, the Confidential Secretary. The Acting Chief Registrar also stated that that the suit number and names of the parties "can be easily identified on our [Lagos State Judicial official website] www.lagosjudiciary.gov.ng/search/asp."³

Here, the Petitioner has submitted evidence containing contradictory information regarding the legal termination of his first marriage to F-O-A- in Nigeria. In the context of his 2022 VAWA petition, the Petitioner provided two sets of Decrees Nisi and Decrees Absolute from Nigeria that list different suit numbers, have different signatures, and reflect different dates for the Decree Nisi (i.e., [] 2015 vs. [] 2015) as well as for the Decree Absolute ([] 2016 vs. [] 2016). Moreover, one set of documents contains internally inconsistent dates for the underlying marriage to F-O-A- (1991 vs. 2006). Although the Petitioner now provides a letter from the High Court of Lagos State, [] stating that the new Decree Nisi and related Decree Absolute submitted on

² As the petition is not otherwise approvable for the reasons set forth in this decision, we reserve the issue of whether or not the Petitioner's documents conform to Nigerian law. Our reservation of the issue is not a stipulation that the Petitioner has overcome the additional basis for denial and should not be construed as such. Rather, there is no constructive purpose to addressing the additional ground here, because as shown below, it would not change the outcome of the appeal. See *INS v. Bagamasbad*, 429 U.S. 24, 25 (1976) ("courts and agencies are not required to make findings on issues the decision of which is unnecessary to the results they reach"); see also *Matter of L-A-C-*, 26 I&N Dec. 516, 526 n.7 (BIA 2015) (declining to reach alternative issues on appeal where an applicant is otherwise ineligible).

³ The website address provided by the Court results in a server error message. A search of the Lagos Judiciary Information System at an alternate address results in evidence that divorce proceedings were initiated in 2014, but do not reflect that the proceedings ended in termination of the marriage. See <https://lagosjudiciary.gov.ng/onlineSearch.html#onlineSearch>, accessed on December 9, 2024.

appeal for Suit No. [REDACTED]/2014 are genuine, the letter simply states that the previously submitted decrees (under Suit No. [REDACTED]/2015) contained inadvertent errors committed by the Confidential Secretary, without explaining why the High Court issued decrees in the Petitioner's and his former spouse's names for a different Suit [REDACTED]/2014 in the first place.

Moreover, on appeal, the Petitioner makes inconsistent claims regarding the current availability of his divorce documents on the Nigerian judicial website, undermining their evidentiary value. The July 2024 letter from the High Court states that the documents for Suit No. [REDACTED]/2014 are available online and include the court's directions for accessing the relevant judicial website. Although search of the Nigerian judicial website shows that the Petitioner initiated divorce proceedings in [REDACTED] 2014, there are no subsequent records, including a Divorce Nisi and a Divorce Absolute, showing that the proceedings resulted in termination of his marriage to F-O-A-. Therefore, the letter from the High Court in Nigeria does not resolve the inconsistencies between the Petitioner's claims and his evidence and does not establish the validity of the documents for the Decree Nisi and Decree Absolute for either Suit No. [REDACTED]/2015 or Suit No. [REDACTED]/2014.

Finally, the Petitioner's record contains contradictory information regarding the identity of his first spouse. In the context of his VAWA petition, he claimed to have been married to F-O-A- in Nigeria prior to his marriage to his U.S. citizen spouse, K-O-. According to his 2016 visa application, F-O-A-'s date of birth is [REDACTED] 29, 1970. However, when he filed a Form I-485, Application to Register or Adjust Status, in 2017, the Applicant included a Form G-325, Biographic Information, on which he stated that he had been married to an individual named F-P- with a date of birth of [REDACTED] 30, 1970. Consequently, even if the Petitioner had established that he was divorced from F-O-A-, based on his statements in his 2017 Form G-325, he was previously married to an individual named F-P-, and the record does not establish the termination of his marriage to F-P-.

Based on the Petitioner's contradictory claims and inconsistent evidence which have not been resolved on appeal, he has not established whether he was married to one or two spouses in Nigeria, the identities of the spouse or spouses, and whether his marriage or marriages in Nigeria were legally terminated in 2016 before he married his U.S. citizen spouse in 2017, as claimed. Consequently, the Petitioner has not met his burden of proof to show that he has a qualifying marital relationship with a U.S. citizen spouse and his corresponding eligibility for immediate relative classification based on that relationship pursuant to sections 204(a)(1)(A)(iii)(II)(aa) and (cc) of the Act. For these reasons, he is not eligible for VAWA immigrant classification, and the petition may not be approved.

ORDER: The appeal is dismissed.